

26STCV07523 26STCV07523

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-07-02

Source URL:

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Case Number: 26STCV07523 Hearing Date: July 2, 2026 Dept: 307

9 TENTATIVE RULING 9:15 a.m., Thursday, July 2, 2026

ESTEBAN

LOPEZ v. MANAVI DENTAL CORPORATION, et al. [26STCV07523]

MOTION

TO COMPEL ARBITRATION OF DEFENDANTS MANAVI DENTAL CORPORATION AND WEST COAST
DENTAL ADMINISTRATIVE SERVICES, LLC

Complaint

alleges violations of FEHA

TIMELINE:

complaint alleges FEHA violations

7/17/2025: Plaintiff Esteban Lopez

("Plaintiff") begins his employment as a traveling specialty dental assistant for Defendants Manavi Dental Corporation ("Manavi Dental") and West Coast Dental Administrative Services, LLC ("West Coast") (collectively, "Defendants").

7/29/2025: Plaintiff suffers a stroke and is

admitted to the hospital. The following day, a family member notifies Defendants of Plaintiff's medical status. Plaintiff receives a text message from a scheduling employee requesting a doctor's note to excuse Plaintiff's absences from work. That evening, Plaintiff sends a doctor's note. The scheduling employee states it would be forwarded to Defendant's HR.

8/1/2025: Plaintiff provides Defendants with a

second medical note, stating that he could not return to work until 8/11/2025.

An HR employee approves a personal leave of absence through 8/10/2025 and informs Plaintiff that if he could not return to work by 8/11/2025 he would be required to submit a written extension request and that his failure to return would be treated as a voluntary resignation.

8/11/2025: Plaintiff emails the HR employee with a disability application due to his inability to drive without medical clearance. Plaintiff did not state that he was resigning or permanently unable to work. The following day, the HR employee responds that she was "sorry to hear" that Plaintiff would not be returning to work and invites Plaintiff to re-apply when he was well enough to work. Defendants did not respond further to Plaintiff.

9/4/2025: Defendants invite Plaintiff to complete an exit interview, indicating Plaintiff's employment had been terminated.

3/9/2026: Plaintiff files the Complaint, alleging causes of action for:

1. Disability Discrimination in Violation of FEHA
2. Retaliation in Violation of FEHA
3. Failure to Provide Reasonable Accommodations in Violation of FEHA
4. Failure to Engage in Good Faith Interactive Process in Violation of FEHA
5. Failure to Prevent Discrimination and Retaliation in Violation of FEHA
6. Wrongful Termination in Violation of Public Policy

5/11/2026: Defendants file this Motion to Compel Arbitration, which is followed by Plaintiff's Opposition (6/16/2026) and

Defendants' Reply (6/23/2026).

TENTATIVE

RULING: MOTION TO COMPEL ARBITRATION OF DEFENDANTS MANAVI DENTAL CORPORATION AND WEST COAST DENTAL ADMINISTRATIVE SERVICES, LLC is DENIED.

I. MOTION
TO COMPEL ARBITRATION

Defendants move to compel the claims in Plaintiff's Complaint to arbitration on the grounds that Plaintiff expressly agreed to arbitrate his claims by signing two arbitration agreements in connection with his employment for Defendants in 2019 and 2025. (Mot., at p. 3.)

A.
Existence
of an Arbitration Agreement

The Court finds that Defendants have overcome their initial burden of proving the existence of an arbitration agreement by a preponderance of the evidence. In a motion to compel arbitration, "[t]he moving party 'can meet its initial burden by attaching [...] a copy of the arbitration agreement purporting to bear the [opposing party's] signature.' [Citation.] ... For this step, 'it is not necessary to follow the normal procedures of document authentication.' [Citation.]'" (Gamboa v. Ne. Cmty. Clinic (2021) 72 Cal. App. 5th 158, 165 (Gamboa).)

Here, Defendants contend that two arbitration agreements govern the instant lawsuit, both of which Plaintiff purportedly signed in connection with his hiring for two affiliate dental practices of West Coast in 2019 and 2025. (Mot., at p. 8.) Defendants submit the declaration of Kenneth Lozano, the Vice President of Human Resources for West Coast and the custodian of employee personnel files for both West Coast and its affiliate dental practices, including Manavi Dental. (Lozano Decl., ¶¶ 1, 5.)

First, Mr. Lozano declares that Plaintiff was employed by one of West Coast's affiliated

dental practices (not Manavi Dental) in 2019. (Lozano Decl., ¶ 4.) Mr. Lozano asserts that he reviewed Plaintiff's West Coast employment file and determined that Plaintiff initially applied for a position with this affiliate practice as a treatment coordinator in November 2019. (Id. ¶ 13.) In accordance with West Coast's new hire practices, Mr. Lozano states that Plaintiff was provided with an arbitration agreement (the "2019 Agreement") as part of his new hire onboarding documents, which Plaintiff purportedly electronically signed on November 17, 2019. (Id. ¶¶ 14-15, Exh. A.) According to Mr. Lozano, Plaintiff resigned from the position with West Coast's non-party affiliate in 2020. (Id. ¶ 16.) The 2019 Agreement states in relevant part:

Esteban Lopez ("Employee") and
West Coast Dental Services, Inc. and affiliates ("Company") agree that, to the fullest extent permitted by law, any and all claims or controversies between them (or between Employee and any present or former ... agent ... of the Company or any ... other entity affiliated with Company) relating in any manner to the employment or the termination of employment of Employee shall be resolved by final and binding arbitration ("Arbitrable Claims").

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..

THE PARTIES UNDERSTAND AND AGREE
THAT BY ENTERING INTO THIS ARBITRATION AGREEMENT, THEY ARE EACH WAIVING THE
RIGHT TO A TRIAL BY JURY OR TO PARTICIPATE IN A CLASS, COLLECTIVE, OR OTHER
REPRESENTATIVE ACTION.

(Id.
Exh. A, at pp. 1-2.)

Second,
Mr. Lozano declares that Plaintiff was hired again by another West Coast affiliate, Manavi Dental, in July 2025. (Lozano Decl., ¶ 17.) In accordance with West Coast's standard onboarding process, Plaintiff was provided with a Mutual Arbitration and Class Action Waiver Agreement (the "2025 Agreement"). (Id. ¶ 17.) Plaintiff purportedly electronically signed the 2025 Agreement on July 16, 2025. (Id. Exh. B.) The 2025 Agreement states in relevant part:

This [Agreement] is made and
entered into by and between West Coast Dental Services, Inc. (the "Company")

and an employee of the Company (the “Employee”). [...] This Agreement shall be governed by the Federal Arbitration Act, and is to be construed as broadly as is permissible under applicable law.

.
. .

The Company and Employee mutually consent to the resolution by arbitration of all claims (“claims”), whether or not arising out of Employee’s employment (or its termination), that the Company may have against Employee or that Employee may have against the Company or against its officers, directors, employees or agents in their capacity as such or otherwise.

(Id.
Exh. B, at p. 1.) The 2025 Agreement further states:

This is the complete agreement of the parties on the subject of arbitration of disputes, except for any arbitration agreement in connection with any pension or benefit plan. This Agreement supersedes any prior or contemporaneous oral or written understanding on the subject.

(Id.
Exh. B, at p. 5.)

With respect to both agreements, Mr. Lozano contends that all employees must access and execute West Coast’s onboarding documents through West Coast’s electronic system, ADP WorkforceNow, which must be accessed by the employee using a unique username and password. (Lozano Decl., ¶¶ 19-20.) Mr. Lozano further indicates that Plaintiff’s electronic signature and name could only be placed on the two agreements through his secure, password-protected account, and neither West Coast nor its affiliates had any means to manipulate, correct, or change the information stored in the electronic system. (Id. ¶ 20.)

Finally, although Manavi Dental is not a direct signatory to either of the two agreements, the Court finds that Defendants have demonstrated that Manavi Dental is an intended beneficiary of the agreements between Plaintiff and West

Coast, or at minimum, principles of equitable estoppel prevent Plaintiff from denying that Manavi Dental can enforce the agreements. (Bouton v. USAA Casualty Ins. Co. (2008) 167 Cal.App.4th 412, 424 [generally, only signatories to arbitration agreements have standing to enforce them, with exceptions as to non-signatory persons “who are agents or alter egos of a signatory party or intended third party beneficiaries of an arbitration agreement.”].) First, the 2019 Agreement expressly defines the “Company” as both West Coast and its affiliates. (Lozano Decl., Exh. A, at p. 1.) Manavi Dental is one such affiliate of West Coast. (Id. ¶¶ 3-4.) Thus, it cannot be disputed that Manavi Dental was expressly intended as a third-party beneficiary of the 2019 Agreement. (See Philadelphia Indemnity Ins. Co. v. SMG Holdings, Inc. (2019) 44 Cal.App.5th 834, 841 [“Whether a nonsignatory is an intended third party beneficiary to the contract is determined from the parties’ intent, as gleaned from the contract as a whole and the circumstances under which it arose.”].)

Second, Defendants

argue that Manavi Dental can enforce the 2025 Agreement under principles of agency and equitable estoppel. “The equitable estoppel doctrine extends to claims that are dependent upon or inextricably intertwined with the obligations imposed by the contract containing the arbitration clause.” (JSM Tuscany, LLC v. Superior Court (2011) 193 Cal.App.4th 1222, 1241.) In this case, Plaintiff alleges that West Coast and Manavi Dental were acting as an “integrated enterprise” and “joint employer” of Plaintiff. (Compl., ¶ 11.) Plaintiff further alleges that the Defendants were acting as agents of one another. (Id. ¶ 10.) Plaintiff asserts all six employment-related claims in his Complaint against both Defendants as his joint employers. Further, as confirmed by Mr. Lozano’s declaration, West Coast and Manavi Dental worked together as affiliates under a support services agreement in which West Coast agreed to provide administrative services, including human resources services, to Manavi Dental. (Lozano Decl., ¶¶ 3-4.) Indeed, West Coast hired Plaintiff on behalf of Manavi Dental and was the entity responsible for overseeing Plaintiff’s onboarding process and managing Plaintiff’s personnel file on behalf of Manavi Dental. (Id. ¶ 17.) Both the allegations in the Complaint and the evidentiary record here confirm that West Coast was acting as an agent of Manavi Dental, and vice versa, for the purpose of jointly employing Plaintiff. Plaintiff’s present claims against West Coast and Manavi Dental, as his joint employers, are “inextricably intertwined” with the obligation to resolve disputes in arbitration. It would be inequitable to permit Plaintiff to proceed against Defendants on theories of agency and joint

enterprise while denying that Manavi Dental can invoke the 2025 Agreement as his joint employer.

Accordingly, the Court finds that Defendants have met their initial burden by attaching a copy of an arbitration agreement purportedly bearing Plaintiff's electronic signature which covers the instant claims against both Defendants. (*Espejo v. So. Cal. Permanente Med. Group* (2016) 246 Cal.App.4th 1047, 1060 ["defendants... met their initial burden by attaching to their petition a copy of the purported arbitration agreement bearing... electronic signature."].)

In his Opposition, Plaintiff disputes the authenticity and enforceability of both purported agreements. Where, as here, the opposing party disputes the validity of the alleged arbitration agreement then "the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement." (*Gamboa*, supra, 72 Cal. App. 5th at p. 165.) For example, the opposing party may do so by declaring under penalty of perjury that she never saw or signed the agreement. (*Ibid.*)

1.
2019
Agreement

First, with respect to the 2019 Agreement, Plaintiff argues that he was not the employee who signed the 2019 Agreement because he was not employed by a West Coast affiliate in 2019. (*Opp.*, at pp. 5, 7.) In his declaration, Plaintiff denies that he was employed by West Coast, its predecessor, or any of its affiliated entities in 2019. (*Lopez Decl.*, ¶ 2.) Plaintiff denies that he signed an arbitration agreement or any other employment document in connection with West Coast in 2019. (*Ibid.*) Plaintiff also denies that the electronic signature appearing on the 2019 Agreement is his own and declares that he did not authorize anyone to sign the document on his behalf. (*Ibid.*) Plaintiff's categorical denial that he did not have a prior employment relationship with West Coast in 2019 and that he did not execute any arbitration agreement in 2019 is sufficient to overcome Plaintiff's responsive burden of producing evidence to challenge the 2019 Agreement's authenticity. (See *Bannister v. Marinidence Opco, LLC* (2021)

64 Cal.App.5th 541, 546 (Bannister) [opposing party never saw or signed agreement]; see Fabian v. Renovate America, Inc. (2019) 42 Cal.App.5th 1062, 1065 [opposing party never given or signed contract].)

“Where, as here, the respondent challenges the validity of the signature... the petitioner must ‘establish by a preponderance of the evidence that the signature was authentic.’” (Bannister, supra, 64 Cal.App.5th at p. 544.) “In such proceedings, ‘the trial court sits as a trier of fact.’ [Citation.]” (Ibid.) Here, Defendants submit the Supplemental Declaration of Mr. Lozano to refute Plaintiff’s contention that he was not the individual who signed the 2019 Agreement. Mr. Lozano explains that Plaintiff’s West Coast personnel file contains identifying information which confirms that Plaintiff is the same individual who was employed by West Coast in both 2019 and 2025. For example, Plaintiff’s date of birth, social security number, email address, and driver’s license number appear consistently across both of Plaintiff’s application records. (Lozano Supp. Decl., ¶¶ 4-7, Exhs. E, F.) In light of these supplemental application records, the Court finds that Plaintiff’s theory that the 2019 Agreement bears the signature of a different employee with his name is not credible. Considered together with Defendants’ evidence that the 2019 Agreement was signed by accessing a secure online platform accessible only to the applicant through a password-protected account, the Court finds that this supplemental evidence is sufficient to overcome Defendants’ burden of demonstrating the genuineness of Plaintiff’s electronic signature on the 2019 Agreement. (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842 (Ruiz) [defendants must prove by a preponderance of the evidence that the plaintiff was the person who electronically signed the agreement].)

2. 2025 Agreement

Second, with respect to the 2025 Agreement, Plaintiff argues that he does not recognize the document and does not recall ever reviewing or signing the document during his onboarding process with Manavi Dental. (Mot., at p. 9.) However, unlike Plaintiff’s categorical denial that he did not sign the 2019 Agreement, Plaintiff does not emphatically deny that he signed the 2015 Agreement. Instead, Plaintiff concedes that he was “presented with a number of documents” during his onboarding process in July 2025, but he simply does not recall signing the document because it was not “separately presented, highlighted, or

explained” to him during his onboarding. (Lopez Decl., ¶¶ 3-4.) Further, unlike in Ruiz, Plaintiff does not assert that he would never have signed any agreement that limited his ability to sue his employer if he had been presented with such an agreement. (Ruiz, supra, 232 Cal.App.4th at p. 840.)

To the contrary, Plaintiff effectively admits that he could have electronically signed the arbitration-related document because he “understood that [he] was required to complete and sign all of the onboarding documents presented to [him]” through the online onboarding portal in connection with his hiring in July 2025. (Lopez Decl., ¶ 5.) Considering the totality of the evidence related to Plaintiff’s signature on the 2025 Agreement, the Court finds Plaintiff fails to present sufficient evidence to raise doubts regarding the authenticity of his electronic signature on the 2025 Agreement.

Plaintiff

also challenges the numerous purported “irregularities” with the 2025 Agreement itself, which Plaintiff contends undermines the document’s validity as a binding contractual agreement. (Opp., at pp. 8-9.) First, Plaintiff points out that a representative of West Coast did not sign the 2025 Agreement. (Id. at p. 12.) Indeed, the only signature that appears on the 2025 Agreement is the electronic signature of Plaintiff affixed to the bottom left corner of the agreement. (Lozano Decl., Exh. B, at p. 7.) Even so, California case law repeatedly finds arbitration agreements enforceable, even where only the employee has signed the agreement, if the agreement reflects the employer’s intent to be bound. (See *Mar v. Perkins* (2024) 102 Cal.App.5th 201, 21 [finding a mutually enforceable arbitration agreement where the agreement itself indicated that employer agreed to be bound to the agreement and to arbitrate relevant disputes]; see *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 398–399 [finding a mutually enforceable agreement to arbitrate where the agreement was printed on the employer’s company letterhead and the agreement declared the employer’s intent to be bound to “mandatory” binding arbitration].) Here, the 2025 Agreement states that Plaintiff’s agreement to arbitrate is given in consideration for his continued employment and reflects West Coast’s mutual assent to the arbitration policy’s terms. (Lozano Decl., Exh. B.) Plaintiff concedes that he was required to sign all onboarding documents, including the 2025 Agreement, as part of the onboarding process. (Lopez Decl., ¶ 5.) The mandatory nature of the 2025 Agreement is also apparent because it indicates that continuing to work for West Coast for 10 days after receiving the Agreement constitutes assent. (Lozano Decl., Exh. B, at p. 6.) Thus, although a representative of West Coast did not sign the arbitration agreement,

Plaintiff's electronic signature on the "mandatory" arbitration agreement is sufficient to form an enforceable contract with West Coast. (See *Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 174–175 [employee's signature on the employer's "mandatory" arbitration policy was sufficient to form an enforceable contract where the employee was required to execute the policy as part of her employment and where the employer has performed all the duties required of it under the arbitration agreement].)

Second, Plaintiff

argues that the 2025 Agreement's signature page is incoherent because it is labeled "Page 7 of 6." (Opp., at p. 12.) Plaintiff argues that this page numbering system suggests that the signature page was not originally part of the same document. Even so, Page 6 of 6 of the 2025 Agreement expressly states "[Signatures on the Following Page]," which is not inconsistent with the signature blocks on Page 7 of 6. (Lozano Decl., Exh. B, at p. 6.) At most, the numbering appears to be a harmless typographical error. Relatedly, Plaintiff argues that the signature blocks are completely blank and that Plaintiff's alleged signature appears to be entirely disconnected from the signature blocks. (Opp., at p. 12.) Even so, Mr. Lozano declares that the format of Plaintiff's signature is consistent with the format of other employees' electronic signatures on West Coast's onboarding documents. (Lozano Decl., ¶ 19.) Unlike a handwritten signature, is not unreasonable that the electronic signature process might affix a signature on a different area of the page than the designated signature block. As Plaintiff does not meaningfully dispute that the signature affixed to the 2025 Agreement is not his own electronic signature, the Court finds this argument to be unpersuasive.

Third,

Plaintiff argues that the corporate entity identified on the face of the 2025 Agreement did not exist in that corporate form at the time the 2025 Agreement was presented to Plaintiff. (Opp., at p. 13.) Specifically, although the 2025 Agreement identifies "West Coast Dental Services, Inc." as the employer, Mr. Lozano admits in his declaration that West Coast was converted to "West Coast Dental Administrative Services, LLC" in 2022, before the 2025 Agreement was executed. (Lozano Decl., ¶ 1; Exh. B, at p. 1.) Thus, Plaintiff contends that the 2025 Agreement is a nullity. Even so, this argument is unsupported by the law governing corporations. Under Corporations Code section 1158, subdivision (a), "[a]n entity that converts into another entity pursuant to this chapter is for all purposes [subject to certain exceptions] ... the same entity that existed before the conversion." (Corp. Code, § 1158, subd. (a).) Thus, even if West

Coast changed its name or corporate form, West Coast remains the same corporate entity identified in the 2025 Agreement. Given that the change of name could not have reasonably impacted Plaintiff's ability to meaningfully consent to the agreement with West Coast, the continued use of West Coast's predecessor name does not impair the enforceability of the 2025 Agreement.

Based on

the aforementioned, the Court finds that Plaintiff fails to overcome his responsive burden of challenging the authenticity of the 2025 Agreement or its facial validity as a contract.

Accordingly,

Defendants have adequately demonstrated the existence of an agreement to arbitrate Plaintiff's employment-related claims against Defendants. Notably, based on the plain language of the 2025 Agreement, the 2025 Agreement supersedes the 2019 Agreement "on the subject of arbitration of disputes..." (Lozano Decl., Exh. B, at p. 5.) Thus, the Court concludes that although Defendants have demonstrated that both agreements were validly executed by Plaintiff, only the 2025 Agreement governs Plaintiff's claims asserted in the instant Complaint. (See Rep., at p. 7.) Thus, the burden shifts to Plaintiffs to prove any defense to the enforceability of the 2025 Agreement by a preponderance of the evidence. (Banner Entertainment, Inc. v. Superior Ct. (Alchemy Filmworks, Inc.) (1998) 62 Cal.App.4th 348, 356-57.)

B.

Unconscionability

The

Court finds that the 2025 Agreement is unconscionable. For an arbitration agreement to be unconscionable, both procedural and substantive aspects of unconscionability must be present. (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114 (Armendariz).) However, "the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (Gatton v. T-Mobile USA, Inc. (2007) 152 Cal.App.4th 571, 579, quoting Armendariz, supra, 24 Cal. 4th at p. 114). Procedural unconscionability involves oppression or surprise due to unequal bargaining power, whereas substantive unconscionability involves overly harsh or one-sided results. (Cook v. University of Southern California (2024))

1. Procedural Unconscionability

The Court

finds that the 2025 Agreement is minimally procedurally unconscionable. Plaintiff argues that the 2025 Agreement is procedurally unconscionable because it was drafted by West Coast, presented on a take-it-or-leave-it basis, consisted of a “dense, six-page, single-spaced pre-printed form,” and presented to Plaintiff alongside numerous other mandatory onboarding forms without separately highlighting or explaining the document to Plaintiff. (Opp., at p. 15.) Yet, while arbitration provisions imposed on a take-it-or-leave-it basis may indicate some level of procedural unconscionability, “a compulsory predispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a ‘take it or leave it’ basis.” (Thompson v. Toll Dublin, LLC (2008) 165 Cal.App.4th 1360, 1372; see Lagatree v. Luce, Forward, Hamilton & Scripps (1999) 74 Cal. App. 4th 1105, 1127; see Morris v. Redwood Empire Bancorp (2005) 128 Cal.App.4th 1305, 1320 [“Although adhesion contracts often are procedurally oppressive, this is not always the case.”].) Thus, even if Plaintiff’s consent to the 2025 Agreement was a precondition of his employment for Defendants, this condition does not create a significant degree of procedural unconscionability.

Further, Plaintiff’s

characterization of the 2025 Agreement as a long, dense pre-printed form does not significantly undermine the enforceability of the agreement. The 2025 Agreement is plainly labeled on its first page as a “Mutual Arbitration and Class Action Waiver Agreement” in bold font, in a larger font size than the contract terms. (Lozano Decl., Exh. B, at p. 1.) The first sentence of the 2025 Agreement makes clear that the document is an agreement between the employer and the employee. (Ibid.) While the 2025 Agreement is seven total pages, only five of these pages contains complete pages of text. Even among these five pages, the terms are printed in a clear and legible font, separated into sub-sections by clearly labeled, underlined headings set apart from the other text. Throughout the 2025 Agreement, important terms are emphasized in bold font. For example, the 2025 Agreement clearly states in bold lettering that the signatory employee has a right to consult an attorney before signing. (Id. at p. 6.) Although the 2025 Agreement was presented to Plaintiff among a package of other onboarding documents, Plaintiff cannot reasonably argue that

the terms of the arbitration agreement were so “hidden” among the onboarding documents that they cannot be binding. The 2025 Agreement is clearly labeled as an arbitration agreement and even a cursory glance over the five pages should have highlighted the fact that the document contained a legally binding dispute resolution provision. Given these facts, Plaintiff’s apparent failure to read the 2025 Agreement with reasonable diligence before signing is not a ground to avoid arbitration. (*Brookwood v. Bank of America* (1996) 45 Cal.App.4th 1667, 1673.)

Thus, the Court finds that the 2025 Agreement is only minimally procedurally unconscionable.

2. Substantive Unconscionability

The Court finds that the 2025 Agreement is significantly substantively unconscionable and that the unconscionable terms cannot be severed. Plaintiff argues that the 2025 Agreement is impermissibly overbroad because it is not limited to employment-related claims, it applies to all of West Coast’s “officers, directors, employees or agents in their capacity as such or otherwise,” and it purports to survive the termination of Plaintiff’s employment with no end date, unless otherwise revoked in writing. (Opp., at p. 16; Lozano Decl., Exh. B.) The Cook decision has held that substantially similar provisions are unconscionable in the employment context. (*Cook*, supra, 102 Cal.App.5th 312.) In *Cook*, like the 2025 Agreement here, the parties’ arbitration agreement required the arbitration of “all claims, whether or not arising out of Employee’s University employment, remuneration or termination, that Employee may have against the [Employer] or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise; and all claims that the University may have against Employee.” (*Cook*, supra, 102 Cal.App.5th at p. 321, italics added.) The Cook court expressly distinguished this provision from those that are “expressly limited to claims arising from the employee’s job application and subsequent employment.” (*Id.* at p. 323.) In other words, the Cook court’s primary issue with the agreement was that it governed claims “completely unrelated to Cook’s employment.” (*Id.* at p. 325.) Even further, the 2025 Agreement similarly requires West Coast to

arbitrate only those claims brought against Plaintiff, whereas Plaintiff is required to arbitrate claims not only brought against West Coast but also against its officers, directors, employees, and agents, whether or not in their capacity as such, thereby undermining the mutuality of the arbitration agreement.

Further, the

agreement in *Cook*, like in the 2025 Agreement here, stated that it “shall survive the termination of Employee’s employment, and may only be revoked or modified in a written document that expressly refers to the ‘Agreement to Arbitrate Claims’ and is signed by the President of the University.” (*Cook*, *supra*, 102 Cal.App.5th at p. 326.) The *Cook* court concluded that an arbitration clause which specifically provides that it will survive indefinitely, “unless and until [the parties] specifically terminate the agreement in a writing, signed by both parties” is substantively unconscionable. (*Ibid.*) Ultimately, here, the issue with the 2025 Agreement’s overbroad scope is that it is drafted in a manner to encompass such broad claims, parties, and duration that the agreement is essentially disconnected from the employee-employer relationship, and covers claims which the weaker party (the employee) could not have been reasonably expected to contemplate as part of their employment contract. It is irrelevant that Plaintiff’s instant lawsuit relates only to claims that arise from Plaintiff’s employment. The 2025 Agreement itself is unconscionable because it is overly broad in scope such that it would be unfairly harsh to enforce the agreement as a whole against the employee. (See *Thompson v. Toll Dublin, LLC* (2008) 165 Cal.App.4th 1360, 1373 [arbitration provisions that are unforeseeably broad and outside the reasonable expectations of the plaintiffs, support a finding of substantive unconscionability].)

Defendants

argue that the unconscionable terms can simply be severed. “An unconscionable contractual term may be severed and the resulting agreement enforced, unless the agreement is permeated by an unlawful purpose, or severance would require a court to augment the agreement with additional terms. [Citation.]” (*Cook*, *supra*, 102 Cal.App.5th at pp. 328-329.) “Severance may be properly denied when the agreement contains more than one unconscionable provision, and ‘there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement.’” (*Id.* at p. 329.) Here, however, the Court finds that the central purpose of the 2025 Agreement is not simply to arbitrate all employment-related disputes, but to require the parties to arbitrate all possible disputes between each other, for an indefinite

period, even including those claims that do not relate to Plaintiff's employment or to his relationship with Defendants. Like the agreement in Cook, the overbroad scope of the 2025 Agreement permits Defendants to move for arbitration of claims against it any of West Coast's related entities, while Plaintiff is only able to move for arbitration of claims by West Coast against him. (Ibid.; Lozano Decl., Exh. B, at p. 1.) Because the unconscionable provisions in the 2025 Agreement are inherent to the central purpose of the arbitration agreement, "curing the unconscionable provisions would require substantive rewriting of the arbitration agreement to contradict its plain language." (Cook, supra, 102 Cal.App.5th at p. 330 [finding that the trial court reasonably exercised its discretion in refusing to sever the unconscionable provisions].) Pursuant to the precedent set by Cook, the Court will not exercise its discretion to sever the unconscionable provisions of the 2025 Agreement and, accordingly, finds that the 2025 Agreement is permeated with significant substantive unconscionable provisions rendering the agreement unenforceable as a matter of law.

Therefore,
Defendants' Motion to Compel Arbitration is DENIED.

II. EVIDENTIARY OBJECTIONS

Plaintiff

objects to the Declaration of Kenneth J. Lozano (Nos. 1-10). The following objections are OVERRULED: 1, 2, 3, 4, 5, 6, 7, 8, 9, and 10.

Plaintiff

also objects to the Declaration of Nilou A. Zakariaie (Nos. 1-2). The following evidentiary objections are SUSTAINED: 1 (improper legal conclusion) and 2 (irrelevant).

Defendants

object to the Declaration of Esteban Lopez (Nos. 1-4). The following objections are OVERRULED: 1, 2, 3, and 4.

Defendants Manavi Dental Corporation and West Coast Dental Administrative Services, LLC to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted on court's website on 7/1/26 at 1:30 a.m.